

Nagendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 February 2016 · WRIT - C No. 6605 of 2016 · **Writ dismissed; relegated to Clause 6.5**

HEADNOTE

A writ challenging a notice to deposit balance electricity dues is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory alternative remedy.

FACTUAL SUMMARY

The Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Agra Region, issued a notice requiring Nagendra Singh to deposit the balance amount towards electricity dues. He filed a writ petition in the Allahabad High Court to assail that notice. Counsel for the Corporation submitted that a statutory alternative remedy lay under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court accepted that submission and declined to entertain the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy against demand notice

HOLDING

A writ petition challenging a notice to deposit balance electricity dues will not be entertained when the consumer has a statutory alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging a notice to deposit balance electricity dues is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE AND THE ALLEGED ELECTRICITY DUES

Petition dismissed on the alternative-remedy ground without examining the notice on merits. ¶ 1